

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	P – Strategies to Empower People (STEP) Program
	Section No./Name	P-500-STEP Sanctions/Good Cause
	Document No./Name	P-530-STEP Good Cause
	Effective Date	January 1, 2021

I. STATEMENT OF POLICY

Sanctions shall be used as a last resort to inform participants that they have not met the expectations set forth in the Family Success Agreement.

II. PROCEDURES

When a work-eligible family's failure or refusal to comply with STEP requirements described in the Family Success Agreement becomes known to the department, an Advance Notice of Adverse Action is sent by the * ES Worker to the client to impose the appropriate STEP sanction. If the client contacts the STEP Coach to claim a good cause reason for non-compliance, the STEP Coach must make a good cause determination, document the results of this determination in Person Notes, and email the ES Worker advising that the sanction must be removed if a good cause determination is approved. When possible, this good cause determination should be made jointly with the STEP Coach's supervisor during the advance notice period for the proposed sanction.

During the 13-day advance notice period, if the STEP Coach determines that the client had a good cause reason which caused the non-compliance, the proposed STEP sanction does not occur and must be removed from LITE by the ES worker, preferably prior to expiration of the 13-day advance notice period. The STEP Coach should then attempt to assist the family with solutions to the problems which caused the failure to comply.

After the 13-day advance notice period, if the STEP Coach determines that the client had a good cause reason which caused the non-compliance, the STEP sanction is considered to have not occurred and must be removed from LITE by the ES worker. In this instance, corrective payments must be made to the client, if applicable. The STEP Coach should then attempt to assist the family with solutions to the problems which caused the failure to comply.

Note: To be eligible for good cause consideration, the reason should be reported within 10 days of knowledge of the change, but must be reported no later than 30 days from the expiration of the advance notice of decision.

The appropriate STEP sanction is imposed if the client:

- does not claim a good cause reason for non-compliance,
- claims a good cause reason for non-compliance but is determined not to have one, or
- does not cooperate with the STEP Coach in trying to determine if a good cause reason existed.

Note: When it becomes known that a STEP sanction is required, the STEP Coach must request a sanction in LITE, which routes a task to the ES worker who imposes the sanction. ** ***

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P-531-STEP - PR GOOD CAUSE REASONS

When a work-eligible recipient fails to meet the requirements specified in the Family Success Agreement pertaining to employment and education activities, good cause can only be granted for the following reasons:

- Unavailability of appropriate child care within a reasonable distance from the participant's home or activity site, after efforts have been made and assistance has been offered to secure such child care.
- Unavailability of appropriate transportation when the participant's home and activity site are not within a reasonable walking distance, or if transportation is available but is cost prohibitive.
- Situations related to domestic violence. Any client who is granted good cause for this reason must be referred to a domestic violence * program.
- Situations related to the treatment of a mental or physical illness, including substance abuse treatment, when there is verification that participation in required activities would impair the treatment plan specified by a mental health or medical professional. Any client who is granted good cause for this reason shall incorporate the treatment plan into the Family Success Agreement. A STEP sanction would be applied if the client does not comply with the treatment plan, unless the client has good cause for not complying with the plan.
- Temporary, short-term illness as documented by a medical professional.
- Temporary care of a family member who is ill, as documented by a medical professional and when there is no other person available to provide the temporary care.
- Temporary emergency crisis, including but not limited to:
 - Homelessness,
 - Fire
 - Accident
 - Hurricane
 - Flood
 - Dislocation due to natural causes
 - Other similar circumstances that can be documented.

The duration of the good cause period shall be as long as the STEP Coach, ** with supervisory approval, determines the condition(s) exist.

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If approved, good cause may be granted for no more than six months. Consideration of a subsequent determination of good cause must be made by the 10th day of the last month of the initial good cause period.

For example, a work-eligible recipient's child becomes ill during a month, causing the recipient to fail to meet participation requirements. The recipient is granted good cause for the failure to comply. The same thing occurs the next month, and the recipient is again granted good cause for failure to comply. The STEP *** Coach **** then learns that the child's illness is more serious, is expected to last a few months, and will require the recipient to provide care for the child for those few months. The recipient still meets the criteria for good cause because she is unable to obtain appropriate child care for the ill child. Once the child's illness and the good cause period ends, the recipient may begin participating again, and if the child becomes temporarily ill again to prevent the recipient from meeting participation requirements for a given month, a good cause reason may be granted.

III. FORMS AND INSTRUCTIONS

There are no forms or instructions associated with this policy.

IV. REFERENCES

[LAC 67](#):II Subpart 2. Family Independence Temporary Assistance Program (FITAP) Program, Chapter 12, Subchapter B – Conditions of Eligibility: 1231, 1239, 1241, and 1249.

[LAC 67](#):XVI Subpart 16. Strategies to Empower People (STEP) Program, Chapter 57, Subchapter B-STEP Program Process, 5717 and 5725.